

Community Votes and Petitions Code, 2026

Ratification Votes, Fundamental Votes, petitions, Special Meetings of Electors, and Annual General Assemblies

Draft for adoption by Council and ratification by the Electors | September 30, 2026

Status	Draft for adoption by Council Resolution and ratification by the Electors in a Ratification Vote.
Works with	Customary Election Regulations, 2026 (Document 05), which govern Elections, removal petitions, and amendments to the Regulations. This Code governs every other vote and petition of the Electors.
Protected	Amended only by Ratification Vote.
Legal review	To be reviewed by legal counsel before adoption.

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COMMUNITY VOTES AND PETITIONS CODE OF THE FORT McMURRAY No. 468 FIRST NATION, 2026

WHEREAS subsection 2(3) of the *Indian Act* provides that a power conferred on a band shall be deemed not to be exercised unless it is exercised pursuant to the consent of a majority of the electors of the band; and

WHEREAS the Documents of the First Nation reserve certain decisions to the Electors, and allow Electors to propose changes by petition; and

WHEREAS every vote and petition of the Electors shall be conducted by an independent electoral officer under the same rules, with mail-in voting for every Elector, and shall not depend on the will of Council;

NOW THEREFORE the Council of the Fort McMurray No. 468 First Nation adopts this Code, subject to ratification by the Electors:

Part 1

Interpretation and Application

1 Citation and Application

- 1.1 This Code may be cited as the *Community Votes and Petitions Code of the Fort McMurray No. 468 First Nation, 2026*.
- 1.2 This Code applies to every vote and petition of the Electors under a Document of the First Nation, other than an Election, a Removal Vote, or a vote on an amendment to the Customary Election Regulations, which are governed by those Regulations.
- 1.3 A vote required by the *Indian Act*, including a vote on a surrender or designation of reserve land under section 38 or on an intoxicant by-law under section 85.1, shall be conducted as that Act and its regulations require. This Code applies to such a vote only to the extent it is consistent with that Act and those regulations.

2 Definitions

- 2.1 In this Code:
 - (a) "Absolute Majority Vote" means a vote in which a majority of all the Electors on the List of Electors vote in favour;
 - (b) "Annual General Assembly" means the annual meeting of Members held under the Council Procedure By-law;
 - (c) "Electoral Officer" means the Electoral Officer appointed under the Customary Election Regulations;
 - (d) "Fundamental Vote" means a vote in which a majority of the votes cast are in favour and a majority of the Electors on the List of Electors cast a ballot;
 - (e) "List of Electors" means the list of Electors prepared under the Customary Election Regulations, as updated by the Electoral Officer for the vote;
 - (f) "Petition" means a petition of Electors under Part 4;
 - (g) "Petition Representative" means the Elector named in a Petition as the person to whom inquiries may be directed;
 - (h) "Ratification Vote" means a vote in which a majority of the votes cast are in favour and at least twenty-five percent (25%) of the Electors on the List of Electors cast a ballot; and
 - (i) "Special Meeting of Electors" means a meeting of Electors called under Part 5.
- 2.2 A term used in this Code that is not defined in section 2.1 has the meaning given in the Governance Constitution or, until it is in force, in the Customary Election Regulations.

Part 2

Kinds of Votes

3 Standards of Approval

- 3.1 A question put to the Electors is approved only if it meets the standard that the Document under which it is put requires:
- (a) a Fundamental Vote, for the Governance Constitution and the Members' Bill of Rights;
 - (b) an Absolute Majority Vote, where the Membership Code or section 10 of the *Indian Act* requires the consent of a majority of the Electors; and
 - (c) a Ratification Vote, for every other Document and every other matter reserved to the Electors.
- 3.2 Where a Document does not state the standard, a Ratification Vote is required.

4 Votes at Meetings

- 4.1 The following may be decided by the Electors at an Annual General Assembly or Special Meeting of Electors, by secret ballot, by a majority of the Electors present and voting, if at least twenty-five (25) Electors are present:
- (a) electing the members of bodies that a Document provides are elected at the Annual General Assembly;
 - (b) confirming, or voting not to confirm, an appointment that a Document makes subject to confirmation;
 - (c) removing an elected member of a body where a Document provides for removal at a meeting;
 - (d) appointing the auditor; and
 - (e) approving the schedule of remuneration of members of Council, or of members of a body, where a Document permits approval at the Annual General Assembly.
- 4.2 Electors who cannot attend in person may take part and vote online where the Electoral Officer certifies in writing that the system allows only one vote for each Elector and protects the secrecy of the ballot.
- 4.3 Votes under section 4.1 shall be conducted by the Electoral Officer or a person the Electoral Officer appoints.

Part 3

Conduct of Votes

5 Calling a Vote

- 5.1 A vote of the Electors is called by Resolution of Council or by a verified Petition, as the Document under which it is held provides.
- 5.2 The Electoral Officer, and not Council, sets the date of the vote, which shall be no earlier than the notice period in section 6.1 allows, and no later than ninety (90) days after the Resolution or the verification of the Petition.
- 5.3 Where an Election under the Customary Election Regulations is to be held within one hundred and eighty (180) days, the Electoral Officer may hold the vote on the same day as the Election, and may hold votes on two (2) or more questions on the same day, each with its own ballot.
- 5.4 Council has no authority to cancel, postpone, or change the question of a vote after notice of it has been given, or to delay a vote called by Petition.

6 Notice

- 6.1 The Electoral Officer shall give notice of a vote at least forty-five (45) days before a Fundamental Vote or an Absolute Majority Vote, and at least thirty (30) days before a Ratification Vote, unless the Document under which the vote is held requires a longer period.
- 6.2 Notice shall be posted at each band office, on the website and any social media page of the First Nation, and at other locations the Electoral Officer designates, and shall be mailed or emailed to every Elector whose address is known.
- 6.3 The notice shall include the question, the full text of any Document or amendment voted on, a plain-language summary approved by the Electoral Officer as fair and accurate, the standard of approval, the date and locations of voting, how to vote by mail, and the dates of the information meetings.
- 6.4 At least fourteen (14) days before the vote, the Electoral Officer shall hold at least one (1) information meeting on a Reserve and one (1) that Electors can attend online.

7 The Question

- 7.1 The Electoral Officer shall approve the wording of the question as clear, neutral, and capable of a yes or no answer, after hearing from Council or the Petition Representative.

8 Voting

- 8.1 Voting shall be by secret ballot at Polling Stations located as section 15.6 of the Customary Election Regulations requires, and by mail-in ballot available to every Elector, under the procedures in Part 5 of those Regulations with the necessary changes.
- 8.2 Internet or telephone voting may be added where section 15.8 of the Customary Election Regulations is met.
- 8.3 One (1) observer for the "yes" side and one (1) for the "no" side, named in writing to the Electoral Officer at least two (2) days before the vote, may attend each Polling Station and the count.
- 8.4 No funds, employees, vehicles, or communications of the First Nation or a First Nation Business Entity shall be used to campaign for or against a question. Council may publish factual information approved by the Electoral Officer.

9 Results

- 9.1 The Electoral Officer shall count the ballots in public immediately after the close of voting, and shall publish the result, the number of Electors on the List of Electors, the number of ballots cast, and the votes for and against, within three (3) days.
- 9.2 The Electoral Officer shall certify in writing whether the question was approved under the standard that applies.
- 9.3 An approved Document or amendment comes into force on the day after the certificate, or on any later date stated in it.

10 Challenges

- 10.1 Within ten (10) days after the result is published, any Elector may appeal the result to the Election Appeal Tribunal on the ground that a breach of this Code or of the Customary Election Regulations materially affected the result.
- 10.2 The Election Appeal Tribunal shall hear and decide the appeal under Part 6 of the Customary Election Regulations, with the necessary changes, and may confirm the result or order a new vote.

Part 4

Petitions

11 Kinds of Petitions and Thresholds

- 11.1 Electors may file a Petition with the Electoral Officer:
- (a) signed by at least ten percent (10%) of the Electors, to propose an amendment to a Document and require a vote on it, where the Document permits amendment on petition;
 - (b) signed by at least ten percent (10%) of the Electors, to require a Special Meeting of Electors on a stated question; and
 - (c) signed by at least twenty-five (25) Electors, where a Document provides for a petition of that number.
- 11.2 A petition to remove a member of Council is governed by the Customary Election Regulations, and a request to amend the Membership Code is governed by the Membership Code.

12 Form of Petition

- 12.1 A Petition shall state its purpose and, for a proposed amendment, the full text of the amendment, and shall name a Petition Representative.
- 12.2 For each Elector who signs, the Petition shall show the printed surname and given names, the signature, the mailing address or land description where the Elector resides, and the date of signing. Each signature shall be witnessed by an adult who signs opposite it.
- 12.3 Signatures dated more than ninety (90) days before the Petition is filed shall not be counted.
- 12.4 The Electoral Officer may approve a secure electronic petition system that verifies the identity of each Elector who signs, and signatures collected through it are valid.
- 12.5 An Elector may withdraw their signature by written notice to the Electoral Officer before the Petition is filed.

13 Verification

- 13.1 The Electoral Officer, and not Council, shall verify a Petition within fourteen (14) days after it is filed, give written reasons, and notify the Petition Representative and Council.
- 13.2 Where a Petition is verified, the Electoral Officer shall call the vote or Special Meeting it requires, under this Code.
- 13.3 Where a Petition falls short, the Electoral Officer shall state the number of valid signatures and the number required, and the Petition may be refiled once, within thirty (30) days, with additional signatures.
- 13.4 The names and addresses of the Electors who sign a Petition shall not be published, and shall be used only to verify the Petition.
- 13.5 A Petition Representative may appeal a refusal to verify a Petition to the Election Appeal Tribunal within ten (10) days.

14 Repeated Questions

- 14.1 Where a question is defeated, a Petition on substantially the same question may not be filed for twelve (12) months after the result.

Part 5

Meetings of Electors

15 Special Meetings of Electors

- 15.1 A Special Meeting of Electors may be called by Resolution of Council, and shall be called by the Electoral Officer within thirty (30) days after a Petition under paragraph 11.1(b) is verified.
- 15.2 Notice shall be given at least fourteen (14) days before the meeting, in the manner set out in section 6.2, and shall state every question to be decided.
- 15.3 A Special Meeting of Electors called to decide a question shall be chaired by the Electoral Officer or a person the Electoral Officer appoints. Only questions stated in the notice may be decided.

16 Annual General Assembly

- 16.1 The Electors present at an Annual General Assembly shall choose a chair who is not a member of Council.
- 16.2 Votes at an Annual General Assembly are conducted under section 4.

Part 6

Costs

17 Costs of Votes

- 17.1 The First Nation shall pay the reasonable costs of every vote, Petition verification, and Special Meeting of Electors under this Code as a first charge on its general revenues. The Finance Officer shall pay the invoices of the Electoral Officer within fifteen (15) days of receipt.

Part 7

Amendment and Coming into Force

18 Amendment

- 18.1 This Code is a protected Document. It may be amended only with the approval of the Electors in a Ratification Vote, after the full text of the proposed amendment has been published for at least forty-five (45) days. Council may not suspend any provision of it.

19 Coming into Force and Transition

- 19.1 This Code comes into force on the date of the Resolution adopting it.
- 19.2 Until a standing Electoral Officer is appointed under the Customary Election Regulations, Council shall appoint by Resolution, for each vote, an independent electoral officer who meets the qualifications in section 8.3 of the Customary Election Regulations, 2026, and that person has the powers of the Electoral Officer under this Code.
- 19.3 Until the Election Appeal Tribunal is constituted, its functions under this Code shall be performed by a lawyer or retired judge who is not a Member, selected by Council by Resolution.
- 19.4 Council shall put this Code to the Electors for ratification within twelve (12) months after it comes into force.

Adopted by Council

Resolution No. and date

Signature of Chief

Signature of Councillor

Ratified by the Electors

Date of vote and votes for / against / total
Electors on the List

Signature of the Electoral Officer

Explanatory Notes

1. Purpose

This Code sets one set of rules for every vote and petition of the Electors outside of Elections. These notes are not part of the Code.

2. Standards of approval

Vote	Standard	Used for
Fundamental Vote	Majority of votes cast, with a majority of all Electors voting	Governance Constitution and Members' Bill of Rights
Absolute Majority Vote	Majority of all Electors on the List vote yes	Membership entitlement rules (Indian Act, s. 10; Membership Code)
Ratification Vote	Majority of votes cast, with at least 25 percent of Electors voting	Every other Document and matter reserved to the Electors
Vote at a meeting	Majority of Electors present and voting, with at least 25 present	Electing committee members, confirming appointments, the auditor, remuneration schedules

3. Key provisions

- Every vote is run by the Electoral Officer, not Council, with mail-in ballots for every Elector and information meetings on a Reserve and online (sections 5, 6, 8).
- Council cannot cancel, postpone, or reword a vote after notice, or delay a vote called by petition (section 5.4).
- Petitions are verified by the Electoral Officer within 14 days. Signers' names are not published (section 13).
- First Nation resources may not be used to campaign on a question (section 8.4).
- Results are published within three days, and may be challenged before the Election Appeal Tribunal (sections 9, 10).

4. Legal sources

Source	Provision
Indian Act, s. 2(3)(a)	A power conferred on a band is exercised with the consent of a majority of the electors of the band
Indian Act, s. 10	Membership rules established with the consent of a majority of the electors of the band
Indian Act, ss. 38, 39, 85.1	Votes required for surrender or designation of reserve land and for intoxicant by-laws, conducted under the Act and its regulations
First Nations Elections Act, s. 42(1)(b)	Majority of votes cast in a vote in which a majority of electors participate, the model for the Fundamental Vote